

Warsaw, November 7, 2022

Decision

DKE.561.28.2022

Based on Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000) in connection with Article 7(1) and (2) and Article 60 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781), as well as based on Article 58(1)(e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of May 4, 2016, p. 1, with amendments published in OJ EU L 127 of May 23, 2018, p. 2, and in OJ EU L 74 of March 4, 2021, p. 35), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on Ms. M. D., running a sole proprietorship under the name "M. D.", the President of the Personal Data Protection Office

terminates the proceedings

REASONING

Factual Background

On November 15, 2021, a complaint was received from Mr. S. O. (hereinafter referred to as the "Complainant"), residing in K. at (...), regarding irregularities in the processing of his personal data, consisting of unauthorized access to the Complainant's personal data, located on the Electronic Services Platform of the Social Insurance Institution (hereinafter referred to as "PUE ZUS") on October 28, 2021, by Ms. M. D., running a sole proprietorship under the name "M. D." (hereinafter referred to as the "Entrepreneur"). In connection with the above, the President of the Personal Data Protection Office (hereinafter referred to as the "President of UODO") initiated explanatory proceedings under reference DS.523.7405.2021.

As part of the aforementioned proceedings (see point 1 of the reasoning of this decision), the President of UODO addressed the Entrepreneur – in a letter dated February 22, 2022 – with a request for answers to the following questions:

- 1) "whether, and if so, on what legal basis (please specify the legal provision), for what purpose, to what extent (please list the personal data) and from what source did you obtain the Complainant's personal data used to gain access on October 28, 2021, to his personal data located on PUE ZUS;
- 2) whether, and if so, on what legal basis (please specify the legal provision) are you currently processing the Complainant's personal data referred to in point 1 above;
- 3) whether, and if so, on what legal basis (please specify the legal provision), for what purpose and to what extent (please list the personal data) did you gain access to the Complainant's personal data on October 28, 2021, contained on PUE ZUS;
- 4) whether, and if so, on what legal basis (please specify the legal provision), for what purpose, to what extent (please list the personal data) are you currently processing the Complainant's personal data referred to in point 3 above."

The request, sent to the address of the permanent place of business, i.e., ul. (...), K., was not received by the Entrepreneur and was returned to the Personal Data Protection Office (hereinafter referred to as "UODO") with the annotation "RETURNED - not collected in time."

In a letter dated March 29, 2022, the President of UODO again addressed the Entrepreneur with a request for answers to the questions indicated above (see point 2 of the reasoning of this decision). Furthermore, the request directed to the Entrepreneur on March 29, 2022, included a notice indicating that failure to provide explanations may result in the imposition of an administrative monetary penalty on the Entrepreneur in accordance with Article 83(5)(e) of Regulation 2016/679. This request, also sent to the address of the permanent place of business (see point 2 of the reasoning of this decision), was not received by the Entrepreneur and was returned to UODO with the annotation "RETURNED - not collected in time."

On May 20, 2022, a power of attorney from the Entrepreneur dated May 18, 2022, was received by UODO, which was granted to attorney A. K. for the purpose of obtaining photocopies of the case files of reference DS.523.7405.2021.

In a letter dated May 20, 2022, which was received by UODO on May 24, 2022, the Entrepreneur requested an extension of the deadline for submitting explanations regarding the requests directed to him, i.e., the request from February 22, 2022, and from March 29, 2022. The Entrepreneur justified the delay in responding to the above letters by the lack of access to the premises to which the correspondence was sent. To substantiate this, the Entrepreneur attached a lease agreement for the premises dated September 17, 2021. The Entrepreneur also explained that after taking over the premises from the tenants on May 10, 2022, he became aware of the ongoing proceedings under reference DS.523.7405.2021.

In a letter dated May 26, 2022, the Entrepreneur, through his attorney – A. K. (Law Firm (...)), provided explanations regarding the matter. In this regard, he responded to the questions contained in the summonses dated February 22 and March 29, 2022, as follows: The Entrepreneur stated that “on October 28, 2021, he gained access to the personal data of the Complainant within the PUE ZUS framework, logging in temporarily and briefly, without retaining the obtained data in any form.” He indicated that he accessed the personal data of the Complainant within the PUE ZUS platform in connection with his role as a doctor at the clinic where the Complainant's wife also works. The Complainant's data, which was provided by his wife in the form of his name, surname, and PESEL number, was processed for the purpose of verifying the status of the Complainant's sick leave. The Entrepreneur justified the processing as an action aimed at protecting the interests of the Complainant, as an incorrectly issued sick leave certificate, in the Entrepreneur's opinion, could cause problems for the Complainant at work. Therefore, the Entrepreneur asserted that “the legal basis for processing personal data by him was Article 6(1)(a) in conjunction with Article 9(2)(a) of the GDPR to the extent that the processing took place in connection with the authorization granted by the Complainant to his wife to obtain information regarding his health status (in the event that such authorization was indeed granted), and in the absence of the appropriate authorization, based on Article 6(1)(d) in conjunction with Article 9(2)(c) of the GDPR – the purpose was to protect the interests of the data subject (the Complainant).” In response to question no. 4) (see point 2 of the justification of this decision), the Entrepreneur stated that currently, as of May 26, 2022, he does not process the personal data of the Complainant. Regarding the failure to provide the President of the UODO with access to information necessary for the performance of his tasks, the Entrepreneur reiterated the arguments contained in the letter dated May 20, 2022 (see point 5 of this justification of the decision) and requested to refrain from imposing a financial penalty on him. In this letter, the Entrepreneur indicated the current correspondence address, i.e., (...) B, and attached a power of attorney granted to attorney K. R. to represent the Entrepreneur in proceedings before the President of the UODO.

The above circumstances of the factual state were established by the President of the UODO based on the entirety of the official correspondence conducted between the Entrepreneur and the President of the UODO, which is included in the case files of proceedings with reference number DS.523.7405.2021. This correspondence reflects the entirety of attempts made by the President of the UODO to gain access to information necessary for the performance of his tasks, that is, in this case – to consider the case with reference number DS.523.7405.2021, and on the other hand – the response of the Entrepreneur and his representative to the requests of the President of the UODO.

Proceedings

Due to the failure of the Entrepreneur to provide the information necessary to resolve the case with reference number DS.523.7405.2021, the President of the UODO initiated ex officio – based on Article 83(5)(e) of Regulation 2016/679 – this administrative proceeding with reference number DKE.561.28.2022, concerning the imposition of an administrative monetary penalty, in connection with the violation of Article 58(1)(e) of Regulation 2016/679. The Entrepreneur was informed of the initiation of the proceedings by a letter dated October 12, 2022 (reference number: DKE.561.28.2022), delivered to the Entrepreneur on October 17, 2022. By this letter, the Entrepreneur was obliged – for

the purpose of determining the basis for the penalty, based on Article 101a(1) of the Act of May 10, 2018 on the Protection of Personal Data (Journal of Laws of 2019, item 1781, hereinafter referred to as "u.o.d.o.") – to provide information about the income achieved for the year 2021.

In response to the information about the initiation of proceedings by the President of the UODO regarding the imposition of an administrative monetary penalty – in a letter dated October 19, 2022 – the Entrepreneur, through his representative, indicated that immediately after taking possession of the premises that constitutes his permanent place of business activity, he provided the President of the UODO with access to the information necessary for the performance of his tasks, as evidenced by letters dated May 20, 2022, and May 26, 2022 (see points 5-6 of the justification of this decision). Furthermore, he stated that "through his representative, he contacted the Office three times by phone to find out whether he should take any further steps and what the status of the case is." This response was accompanied by a power of attorney granted to attorney K. R. to represent the Entrepreneur in the subject proceedings, a letter dated May 26, 2022, along with attachments (see point 6 of the justification of this decision), and confirmation of receipt of the letter.

After reviewing all the evidence collected in the case, the President of the Office for Personal Data Protection considered the following.

Legal Provisions

According to Article 57(1)(a) of Regulation 2016/679, the President of the UODO, as a supervisory authority within the meaning of Article 51 of Regulation 2016/679, monitors and enforces the application of this regulation within its territory. Within the scope of its competencies, the President of the UODO considers, among other things, complaints lodged by data subjects, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant about the progress and results of these proceedings within a reasonable time (Article 57(1)(f) of Regulation 2016/679).

To enable the realization of the tasks thus defined, the President of the UODO is entitled to a number of powers specified in Article 58(1) of Regulation 2016/679 concerning the proceedings conducted, including the power to order the administrator and the entity...

****Processing of Information****

The processor is provided with all necessary information to carry out its tasks (Article 58(1)(a) of Regulation 2016/679) and has the right to obtain access from the controller and the processor to all personal data and all information necessary for the performance of its tasks (Article 58(1)(e) of Regulation 2016/679).

A violation of the provisions of Regulation 2016/679, consisting of the failure of the controller or the processor to provide access to the data and information mentioned above, resulting in a violation of the rights of the authority specified in Article 58(1), is subject to an administrative fine of up to EUR 20,000,000, or in the case of an enterprise, up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

According to Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000), hereinafter referred to as "k.p.a.", when the proceedings have become entirely or partially moot for any reason, the public administration authority issues a decision to discontinue the proceedings accordingly in whole or in part.

Pursuant to Article 60 of the Act on the Protection of Personal Data (u.o.d.o.), proceedings concerning violations of personal data protection regulations are conducted by the President of the Personal Data Protection Office (UODO). Article 7(1) of the u.o.d.o. states that in matters not regulated by this Act, the provisions of the Code of Administrative Procedure (k.p.a.) apply to administrative proceedings before the President of UODO (including proceedings concerning the imposition of an administrative fine, as referred to in Chapter 11 of the u.o.d.o.). According to Article 7(2) of the u.o.d.o., these proceedings are single-instance proceedings.

Pursuant to Article 44 §4 of the k.p.a. in conjunction with Article 44 §1 of the k.p.a., the fiction of delivery occurs upon the expiration of the last day of the period, i.e., 14 days in the case of delivery of

a letter by a postal operator, and the letter is left in the case files.

****Legal Assessment****

In this case, the Entrepreneur did not provide the information necessary to resolve the case with reference number DS.523.7405.2021 within the deadline specified in the requests dated February 22, 2022, and March 29, 2022. The fiction of delivery of the aforementioned correspondence occurred on March 11, 2022, and April 15, 2022, respectively, as a result of which the President of UODO initiated ex officio proceedings concerning the imposition of an administrative fine on the Entrepreneur. The Entrepreneur was informed of this fact by a letter dated October 12, 2022, which was delivered on October 17, 2022.

At the same time, based on the explanations provided by the Entrepreneur in a letter dated October 19, 2022 (see point 9 of the justification of this decision) and documents from the case files with reference number DS.523.7405.2021 (see points 5-6 of the justification of this decision), it was established that the information requested from the Entrepreneur in the letter dated October 12, 2022, was provided to the President of UODO in a letter dated May 26, 2022 (see point 6 of the justification of this decision), which was delivered to UODO on May 30, 2022.

It should be noted that in this case, the above information was provided to the President of UODO after the deadline set in the requests dated February 22, 2022, and March 29, 2022, and according to the lease agreement, the Entrepreneur was registered at the address which also constituted his permanent place of business during that time (see point 5 of the justification of this decision). From February 22 to April 15, 2022, that is, from the date of the first request to the date of the fiction of delivery of the second request, the lease of the premises was ongoing. This period was sufficient for the Entrepreneur to obtain information from the tenants of the premises about the attempted delivery of the aforementioned requests, and thus, he could respond to the correspondence. Confirmation of this is the informational obligation of the tenants of the premises towards the Entrepreneur regarding incoming correspondence to the Entrepreneur, which arises from § 4.4 of the lease agreement (see point 5 of the justification of this decision). However, in the letter dated May 26, 2022, the Entrepreneur exhaustively provided explanations in the case with reference number DS.523.7405.2021, and from that moment it should be considered that he ensured access to the information necessary for the performance of the tasks of the President of UODO (see points 6 and 9 of the justification of this decision).

In light of the above, it should be stated that these proceedings, initiated after the date on which the President of UODO obtained all the necessary information in the proceedings with reference number DS.523.7405.2021, were moot from the moment of their initiation. As already established during the proceedings, there was no factual state at that moment justifying the imposition of an administrative fine on the Entrepreneur for the violation covered by the subject of the proceedings specified in the letter informing about its initiation, that is, for the violation of Article 58(1)(e) of Regulation 2016/679 consisting of failing to provide the President of UODO with access to information necessary for the performance of his tasks.

According to the provisions of Article 105 § 1 of the k.p.a. in conjunction with Article 7(1) of the u.o.d.o., in a situation where the proceedings have become moot in whole or in part for any reason, the administrative proceedings are subject to mandatory discontinuation. The premise for discontinuation of the proceedings may exist even before their initiation, which will only be revealed in the ongoing proceedings (as was the case in this matter), and it may also arise during the course of the proceedings, thus in a case already pending before the administrative authority.

In the doctrine, it is indicated that "The discontinuation of proceedings is not dependent on the will of the administrative authority, nor is it left to the discretion of the authority – this authority is obliged to discontinue the proceedings in the event of finding them to be devoid of subject matter. [...] The circumstances that constitute the basis for discontinuing the proceedings may arise both before the initiation of the proceedings and during their course. [...] The lack of subject matter of the proceedings may also result from a change in the factual state of the case. The proceedings must be deemed

devoid of subject matter as a result of the cessation of the factual state subject to regulation by the administrative authority through a decision (cf. justification of the judgment of the NSA of September 29, 1987, IV SA 220/87, ONSA 1987, No. 2, item 67)." (vide: P. M. Przybysz [in:] Code of Administrative Procedure. Updated Commentary, LEX/el. 2022, commentary on Article 105). It should therefore be acknowledged that in this case there has been a change in the factual state of the case, which led to the discontinuation of the proceedings in question.

In this factual and legal state, the President of UODO decided as stated in the operative part.

Instruction

The decision is final. The Party has the right to file a complaint to the Provincial Administrative Court in Warsaw against the decision, within 30 days from the date of its delivery, through the President of UODO (address: ul. Stawki 2, 00 – 193 Warsaw). The fee for the complaint amounts to 200 PLN. In the proceedings before the Provincial Administrative Court, the Party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the Party's application submitted before the initiation of the proceedings or during the course of the proceedings. The application is free of court fees.

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